

25VECV00787 25VECV00787

County: los-angeles

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Case Number: 25VECV00787 Hearing Date: September 8, 2026 Dept: I

25VECV00787 SALAMANCA v. JAGUAR LAND

ROVER NORTH AMERICA, LLC

September 8, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Compel Deposition Attendance

I.

Background

This is a lemon law action arising out of Plaintiff Margarita Salamanca's ("Plaintiff") lease of a 2022 Land Rover Range Rover Evoque, VIN: SALZT2FX5NH176851 (the "Subject Vehicle"), which Defendant Jaguar Land Rover North America, LLC ("JLRNA") issued a written warranty. On February 11, 2025, Plaintiff filed a Complaint against JLRNA and DOES 1 through 10 (collectively, "Defendants"), alleging causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of the Song-Beverly Act Section 1793.2.

On March 26, 2025, JLRNA filed an Answer to the Complaint.

On July 17, 2026, JLRNA filed the instant Motion to Compel Deposition Attendance. On August 25, 2026, Plaintiff filed an Opposition. Any reply would have been due on August 31, 2026. To date,

no reply has been filed.

II. Discussion

Meet and Confer

"The motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) Specifically, "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) "[A]ttempting informal resolution means more than the mere attempt by the discovery proponent 'to persuade the objector of the error of his ways' and 'a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.'" (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

The Court notes that JLRNA did submit a declaration from its counsel of record, Rosario Stoliker, in support of the present motion. However, Ms. Stoliker does not attest to any meet and confer efforts made prior to the filing the instant motion. Nevertheless, the Court rules on the merits for the reasons set forth below.

Pursuant to the Code of Civil

Procedure Section 2025.010, any party may obtain discovery (subject to the scope and restrictions provided by law) "by taking in California the oral deposition of any person, including any party to the action. The person deposed may be a natural person, an organization such as a public or private corporation, a partnership, an association, or a governmental agency." (Code Civ. Proc., § 2025.010.) A deposition subpoena is the only means by which discovery may be obtained from a nonparty. (Unzipped Apparel, LLC v. Bader, (2007) 156 Cal.App.4th 123, 127.)

"If, after service of a deposition

notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

Here, JLRNA served a Notice of Deposition of Plaintiff and Request for Production of Documents ("Initial Notice") on December 16, 2025 for a deposition date of January 20, 2026. (Stoliker Decl., ¶3, Ex. A.) Plaintiff served her objection on January 13, 2026. (Id., ¶4, Ex. B.) On January 29, 2026, JLRNA sent a meet and confer email to Plaintiff requesting Plaintiff's availability. (Id., ¶5, Ex. C.) Subsequently, JLRNA filed a Motion to Compel Deposition of Plaintiff, which was later taken off calendar after Plaintiff's counsel provided July 2, 2026 as an alternative deposition date. (Id., ¶¶6-8, Ex. D.) On April 27, 2026, JLRNA served an Amended Notice of Deposition of Plaintiff and Request for Production of Documents ("Amended Notice") for a deposition date of July 2, 2026. (Id., ¶9, Ex. E.) Plaintiff failed to appear for the July 2, 2026 date. (Id., ¶12.)

In opposition, Plaintiff does not contest that she failed to appear for the July 2, 2026 date. However, Plaintiff asserts that the deposition took place on August 6, 2026. (Fernandez Decl., ¶8.) JLRNA has not filed a reply brief contesting this fact. Thus, JLRNA concedes on this issue. (See California Rules of Court Rule 3.1113(a); see also Rule 3.1320(f); *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [the party who fails to argue an issue abandons that issue].)

Therefore, the Court finds that the relief requested by the present motion, i.e., compelling Plaintiff's attendance for deposition, is moot.

Request for Discovery Sanctions

"If a motion under [Code of Civil

Procedure, section 2025.450, subdivision (a)] is granted, the court shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2025.450, subd. (g)(1).)

Pursuant to the California Rules of Court, Rule 3.1348, subdivision (a), “The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.” (Cal. Rules Ct., Rule 3.1348, subd. (a).)

“[T]he burden is on the moving party to show (by declarations) the facts essential to an award of sanctions: e.g., the opposing party’s failure to make discovery, reasonable efforts to resolve the matter informally, etc. The burden then shifts to the party against whom sanctions are being sought to establish some excuse or justification for the conduct in question.” (Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (The Rutter Group June 2021 Update) ¶ 8:2015.)

In the moving papers, JLRNA indicates that it seeks \$1,720.00 in monetary discovery sanctions against Plaintiff for bringing this motion consisting of: (1) 3.0 hours preparing the motion at an hourly rate of \$270.00/hr; (2) \$850.00 in court reporter costs; and (3) \$60.00 filing fee. (Mot. at 5:25-26; Stoliker Decl., ¶14.) Although Plaintiff’s counsel states that she proactively reached out to JLRNA on July 24, 2026 offering two separate dates for Plaintiff’s deposition, she makes no effort to explain why Plaintiff failed to appear for the duly noticed and agreed upon deposition date. (Fernandez Decl., ¶7, Ex. B.) Furthermore, Plaintiff’s counsel does not provide justification for failing to respond to JLRNA’s counsel email on that same day. (Stoliker Decl., ¶11, Ex. D.) The Zoom link for the July 2, 2026 deposition date was sent on June 30, 2026, so Plaintiff had at least two days before the deposition to inform JLRNA she was not appearing or could not appear as initially agreed. (Id., ¶10, Ex. D.) Therefore, the Court finds the amount requested reasonable and awards sanctions in the amount requested.

III.

Conclusion

Accordingly, Defendant Jaguar Land Rover North America, LLC's Motion to Compel Deposition Attendance of Plaintiff is DENIED as moot.

Defendant Jaguar Land Rover North America, LLC's Request for Sanctions is GRANTED in the amount of \$1,720.00 payable within 30 days of this order.

Defendant Jaguar Land Rover North America, LLC to give notice.